

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON DC**

**Before the Honorable Clark S. Cheney
Chief Administrative Law Judge**

In the Matter of

CERTAIN SEMICONDUCTOR DEVICES,
PRODUCTS CONTAINING SAME, AND
COMPONENTS THEREOF

Investigation No. 337-TA-1500

JOINT MOTION TO AMEND THE PROTECTIVE ORDER

Pursuant to Commission Rules 210.5 and 210.15, and Ground Rule 3, Complainant GlobalFoundries U.S. Inc. (“GlobalFoundries” or “Complainant”) and Respondents Tower Semiconductor Ltd., Tower Partners Semiconductor, Ltd., Tower Semiconductor Italy S.r.l., Tower US Holdings, Inc., Tower Semiconductor San Antonio, Inc., Tower Semiconductor NPB Holdings, Inc., Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC (collectively, “Tower” or “Respondents”) (Complainant and Respondents together, the “Parties”) respectfully move this Court to amend the Protective Order, entered on April 30, 2026 (Order No. 1), to provide a first amendment for confidentiality provisions for process definitions in this Investigation. The Parties have reached agreement on a majority of provisions below but remain at impasse on the definitions of “Process Flow” and “Process Recipe”. The Parties are continuing to meet and confer and will update the CALJ whether a dispute remains by the end of this week. For now, the Parties have provided their competing positions in footnotes below.

Enhanced confidentiality protection for process definitions is appropriate under 19 C.F.R. § 201.6 because process definitions are highly confidential business information, the disclosure of which would have the likely effect of causing substantial harm to the competitive position of the party from which the information was obtained. *See, e.g., Certain Graphics Processing Chips,*

Systems on a Chip, and Products Containing the Same, Inv. No. 337-TA-941, Order No. 1 at ¶ 18 (Dec. 30, 2014). In light of the CALJ's guidance in previous investigations, the Parties have not included prosecution or development bars in this supplement but reserve the right to propose such provisions in the future should the potential disclosure to specific individuals raise concerns.

Pursuant to Ground Rule 5.1, the Parties certify that they conferred regarding this motion and agreed to submit it as a joint motion.

Accordingly, the Parties respectfully request that the Chief Administrative Law Judge amend the Protective Order to include the *First Protective Order Amendment Regarding the Production and Treatment of Confidential Process Definitions*, attached hereto as Exhibit 1.

Dated: June 23, 2026

/s/ Bert C. Reiser

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APPENDIX OF EXHIBIT

Exhibit	Description
1	First Protective Order Amendment Regarding the Production and Treatment of Confidential Process Definitions

EXHIBIT 1

**UNITED STATES INTERNATIONAL TRADE COMMISSION
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In the Matter of

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PRODUCTS CONTAINING SAME, AND
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Investigation No. 337-TA-1500

**FIRST PROTECTIVE ORDER AMENDMENT REGARDING THE PRODUCTION
AND TREATMENT OF CONFIDENTIAL PROCESS DEFINITIONS**

18. **Highly Confidential Process Recipes and Circuit Layouts.** A party or non-party (hereafter “Supplier”) may designate and produce by making available for inspection documents or things as “HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION” which shall mean material of a Supplier that constitutes or contains Process Flows,^{1, 2} Process Recipes, GDS Files, Schematics, or Circuit Layouts

¹ Complainant’s position: Respondents propose that any documents that reference a “step” or “partial step” of a manufacturing process—including PowerPoints, Word, Excel, and others—be produced on the Secure Computer and subject to stringent restrictions on access, printing, and use in depositions and trial. Yet these types of documents are typically and routinely produced in the normal course of discovery, subject to the ITC’s protective order that limits access to outside counsel; they should not be produced on the Source Code computer, which only increases the burden and cost to Complainant. Indeed, the standard definition of “Source Code” in Protective Orders, such as the Protective Order Your Honor entered in Inv. No. 1484, is “**programming language text** that defines software, firmware, and/or circuits” and “text written in C, C++, C#” etc.—not PowerPoints and Word documents. *Certain Power Converters, Circuit Board Assemblies, and Computing Systems Containing The Same*, Inv. No. 337-TA-1484, Order No. 7. Complainants propose that only actual “source code,” such as process recipes comprising the instructions used by the parties’ respective semiconductor manufacturing equipment, be produced on the Secure Computer, which will facilitate efficient discovery in this Investigation.

² Respondents’ position: Process Flows should also be included since these are among the most secretive and competitively sensitive information of a semiconductor foundry. As a result, inadvertent disclosure would be severely damaging and additional safeguards are warranted. Complainant’s reliance on the protective order in *Certain Power Converters, Circuit Board Assemblies, and Computing Systems Containing The Same*, Inv. No. 337-TA-1484 is misplaced.

(collectively, “Process Definitions”) on a secure computer (“Secure Computer”) in accordance with the heightened protections, access requirements, and other provisions contained herein. The Parties agree that, to the extent Process Development Kits (“PDKs”) become relevant, the Parties will engage in good faith discussions regarding a production protocol for any such PDKs.

A. “Process Flow” shall mean a chart and/or other type of document **[[Respondents: that identifies and/or]]** **[[Complainant: comprising substantial reproductions or excerpts such charts that]]** defines steps or partial steps for the manufacturing process for a specific semiconductor device and/or integrated circuit.

B. “Process Recipe” shall mean the **[[Respondents: human-readable version of]]** instructions used **[[Complainant: by manufacturing equipment]]** to configure and/or control the actual equipment used in connection with a specific step in a Process Flow **[[Respondents: and the specifications of the intended result of such step in a Process Flow including specifications of**

The patent-at-issue in that case is not semiconductor process related; it relates to power converter technology. *See* U.S. Patent No. 12,395,087. As a result, it is not surprising that the protective order in that case, while including GDS and GDS II files, does not cover other process related documents, such as Process Recipes, which Complainant agrees should have heightened protection here. *Certain Power Converters, Circuit Board Assemblies, and Computing Systems Containing The Same*, Inv. No. 337-TA-1484, Order No. 7. Protective Orders protecting process information, regardless of the particular file type of the document, are commonly granted. *See, e.g., Certain Integrated Circuits and Products Containing the Same*, Inv. No. 337-TA-1148, Order No. 26 (covering “Process Flow” documents that include “a chart, diagram, or other type of document (or set of documents) that describes in detail the specific steps in the manufacture of a finished wafer, including the order of steps, applicable tooling Recipes, types of materials, thickness of materials, properties of materials, and the manufacturing process for a specific integrated circuit[.]”

materials and material composition, thicknesses and other dimensions, mechanical, optical, electrical and other defining properties and characteristics]]^{3,4}.

C. “Schematics” shall mean the schematic or drawing or electronic configuration that describes how transistors and/or other semiconductor devices are interconnected to form a desired function.

D. “Circuit Layout” files shall mean layout or mask files that are used for definition and/or data exchange of integrated circuit or part of an integrated circuit or IC or part of IC layout artwork. Circuit Layout files include, but are not limited to, GDS or GDSII (whether corrected or non-corrected GDS or GDSII files), CIF, OASIS, Mann, MEBES, and any and all configuration and/or support files created during the design or review of the layout, including all mask and/or stencil sets that define geometry for any lithographic steps.

E. “Reviewing Party” shall mean PROCESS DEFINITION QUALIFIED PERSONS, as defined in paragraph 18(E), for the Party that wishes to review the HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION.

F. Materials designated as “HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION” shall only be reviewable by

³ Complainant’s position: Respondents’ proposed definition would expand the scope of “Process Recipes” to include, among other things, Word, PowerPoint, and other documents specifying the thickness of certain materials as well as their mechanical operation. Such information, much of which is available simply by way of examining an integrated circuit that is manufactured using a given process, does not merit the additional protections contemplated by this Amendment.

⁴ Respondents’ position: Complainant’s focus on “instructions used by manufacturing equipment” is too limiting. Highly sensitive process information takes many forms, and thus, Respondents have properly included and defined Process Flow and Process Recipe information. It is antithetical to the purpose of a protective order to categorically exclude documents based on the file type and not based on the information the documents contain, which could be subject to heightened protection but for the express exclusion. At a minimum, information should not be denied additional heightened protection based solely on the file type.

PROCESS DEFINITION QUALIFIED PERSONS, who are: (1) outside counsel for Parties who have signed a protective order undertaking in this Investigation (“Outside Counsel”), including necessary secretarial and support personnel employed by such Outside Counsel, as necessarily incident to the litigation of this Investigation; (2) personnel at interpretation/translation service establishments retained by, but not regularly employed by, Outside Counsel as necessarily incident to the litigation of this Investigation, including without limitation oral interpreters and document translators, who have signed a protective order undertaking in this Investigation; (3) the Commission, the Chief Administrative Law Judge, the Commission Investigative Staff, Commission personnel and contract personnel who are acting in the capacity of Commission employees as indicated in paragraph 3(v) of the Protective Order in this Investigation; (4) court reporters, stenographers and videographers transcribing or recording testimony at depositions, hearings, or trial in this Investigation, who have signed a protective order undertaking in this Investigation; (5) a Reviewing Party’s qualified consultants and/or qualified experts in this Investigation (under paragraph 11 of the Protective Order in this Investigation); (6) current employees of Supplier who, in their ordinary course of business with the Supplier, receive or have access to HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION produced by that Supplier (solely with respect to HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION produced by that Supplier); (7) 30(b)(6) witnesses, or expert witnesses designated by the Supplier; (8) outside vendors retained for the purpose of preparing graphics or presentations for use as a demonstrative in a brief or other form of submission or proceeding incident to this Investigation, who have signed a protective order undertaking in this Investigation; and (9) anyone else to whom the Supplier consents, as long as such individual signs an

acknowledgement to be bound by the Protective Order and such consent is expressly provided in writing by outside counsel of record for the Supplier.

G. Qualified consultants and/or qualified experts may only review HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION after being expressly identified to the Supplier as a PROCESS DEFINITION QUALIFIED PERSON, subject to the requirements of paragraph 18(G).

H. No less than eight (8) days prior to the initial disclosure to a proposed expert or consultant of any HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION, the party proposing to use such expert shall submit in writing: (i) the individual's name and business title; (ii) business address; (iii) business or profession; (iv) the individual's CV; (v) any previous or current relationship (personal or professional) with any of the parties; (vi) a list of other cases in which the individual has testified (at trial or deposition) within the last six years; (vii) a list of all companies with which the individual has consulted or by which the individual has been employed within the last four years and a brief description of the subject matter of the consultancy or employment to the Supplier.

If, within the eight (8) day period, the Supplier objects to the disclosure of such HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION to such proposed expert or consultant on any grounds (including to provide sufficient background information about the expert or consultant), it shall notify the recipient in writing of its objection and the grounds therefor prior to the initial disclosure. If the dispute is not resolved on an informal basis within three (3) business days of receiving such notice of objections, the Supplier shall submit immediately each objection to the Administrative Law Judge for a ruling. If the Investigation is before the Commission the matter shall be submitted to the Commission for

resolution. The submission of such HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION to such proposed expert or consultant shall be withheld pending the ruling of the Commission or the Chief Administrative Law Judge. The terms of this paragraph shall be inapplicable to experts within the Commission or to experts from other governmental agencies who are consulted with or used by the Commission. If the Reviewing Party wishes an already identified qualified consultant or qualified expert (under paragraph 11 of the Protective Order in this Investigation) to have access to HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION, it must still comply with this provision.

I. Nothing in this Protective Order shall obligate the parties or any non-party to produce any Process Definitions, nor act as an admission that any particular Process Definitions are discoverable.

J. In addition to the protections provided in paragraphs 1-17 of the Protective Order, HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION shall be provided with the following additional protections:

i. Access to HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION will be given only to PROCESS DEFINITION QUALIFIED PERSONS.

ii. The Supplier shall make any of its HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION available electronically, and in read-only native (to the extent it exists, text-searchable) form, on a “stand-alone” computer, hereinafter referred to as the “Secure Computer,” which has the meaning of a computer that shall not be linked

to any network or storage device, an intranet or the Internet, except, to the extent permitted by the Supplier so far as to permit remote access to host platform(s) for viewing the Process Definitions. Alternatively, solely at the option of the Supplier, the Supplier may make such Process Definition files available on a Secure Computer that is networked, in a configuration deemed secure by the Supplier. Except as otherwise provided herein or otherwise agreed by the Parties, and solely at the option of the Supplier, the Secure Computer may be located at (1) the offices of the Supplier's outside counsel, in a city mutually agreed upon by the Parties, or (2) in a separate room at a secure facility selected by the Supplier in a city mutually agreed upon by the Parties. The Secure Computer shall include an external mouse, external keyboard, suitable graphics card, and external monitor; the monitor shall be at least 27 inch diagonal and at least 1080p resolution; and the computer shall have sufficient performance capability to efficiently view and access the HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION.

- iii. The Secure Computer shall be configured to permit review of the Process Definition files through a password-protected account having read-only access; however, individual files and folders on the Secure Computer shall not be individually password-protected. A Supplier shall make its Process Definition files available in a viewable format, and the Secure Computer shall include any necessary software, including PDF viewing, word processor software (e.g., Microsoft Word), presentation creation software (e.g., Microsoft PowerPoint), screenshot software (e.g., Microsoft Snipping Tool), layout viewer software (e.g.,

Calibre), and all configuration and text files associated with the Circuit Layouts that allow the Reviewing Party to view and search the Process Definition files such as layer names, layer colors, layer patterns, and other identifying and viewing information that is associated with the Circuit Layouts to the extent they exist. A Supplier shall allow the Reviewing Party to generate an index of all the HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION loaded on to the Secure Computers, the index consisting solely of file names, file paths, and/or file sizes. For the avoidance of doubt, an index shall not include any substance of any of the HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION. The Reviewing Party shall place a copy of any such index to be printed in a folder labeled “INDEXES” on the Secure Computer. At the request of the Reviewing Party, the Supplier shall, within two (2) business days, either produce this index as CONFIDENTIAL BUSINESS INFORMATION, SUBJECT TO PROTECTIVE ORDER, or provide one (1) hard copy printout of this index that is designated as HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION. The Secure Computer shall, at the Reviewing Party’s request, include reasonable software tools requested by the Reviewing Party. The Reviewing Party shall be responsible for providing the tools or licenses to the tools that it wishes to use to the Supplier so that the Supplier may install such tools on the Secure Computer. To the extent that such tools record local working files or other records reflecting the work performed by the Reviewing Party, such files and records shall not be reviewed,

altered, or deleted by the Supplier. The Reviewing Party may take notes pertaining to HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION, and such notes are treated as CONFIDENTIAL BUSINESS INFORMATION under the Protective Order, provided however that the Reviewing Party shall not attempt to circumvent this Order by making verbatim or substantially verbatim copies of any portion of the HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION produced on the Secure Computer.

- iv. If any PROCESS DEFINITION QUALIFIED PERSON inspecting Process Definition files seeks to take handwritten notes, all such notes will be taken on bound (spiral or other type of permanently bound) notebooks. No loose paper or other paper that can be used in a printer may be brought into the secure room. The Supplier shall not be responsible for any items left in the room overnight following each inspection session, and the Reviewing Party shall have no expectation of confidentiality for any items left in the room following the conclusion of each daily inspection session without a prior agreement to that effect; the Reviewing Party shall, however, have an expectation of confidentiality for any items left in the room during lunch and/or bathroom breaks.
- v. No person other than the Supplier may alter, modify, or remove the files stored on the Secure Computer in any way, or attempt to circumvent any security feature of the Secure Computer. Notwithstanding the foregoing, no Process Definition file produced on the Secure Computer may be altered, modified, or

removed from the Secure Computer, either by the Supplier or the Reviewing Party, except for: (1) printouts of reasonable portions of the Process Definition files in accordance with the provisions of paragraphs 18(I)(ix)-(x) of this Protective Order; and (2) such other uses to which the parties may agree or that the administrative law judge or the Commission may order.

vi. The Reviewing Party shall provide at least five (5) days notice prior to the initial review of HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION located on the Secure Computer. The Reviewing Party shall provide at least two (2) business days notice prior to subsequent reviews of HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION located on the Secure Computer. The Reviewing Party shall make reasonable efforts to restrict its requests for access to the Secure Computer to normal business hours, which for purposes of this paragraph shall be 9:00 a.m. through 5:30 p.m. local time at the reviewing location. Upon reasonable notice from the Reviewing Party, which shall not be less than three (3) business days in advance, the Supplier shall make reasonable efforts to accommodate the Reviewing Party's request for access to the Secure Computer outside of normal business hours. Such an expanded review period shall not begin earlier than 8:00 a.m. and shall not end later than 8:00 p.m. local time at the reviewing location.

vii. The Supplier is permitted to visually monitor the activities of the Reviewing Party's representatives during any review, but only to the extent necessary to ensure that the representatives are complying with the terms of this Protective

Order. Supplier may not videotape, record, log the keystrokes of, or monitor the review of Process Definition files by the Reviewing Party. However, the Supplier shall be permitted to have a representative outside of the review room available to check reviewers in and out of the secure location, to ensure that prohibited items are not taken into or used within the Secure Computer review room, and may utilize a sign-in and sign-out sheet. To the extent reasonably necessary, in situations where one or more Circuit Layout files (e.g., GDS or GDSII files) being actively reviewed have taken an unreasonably long period of time to open, and upon notice to the Supplier, the Supplying party agrees to confer with the Reviewing Party and make reasonable accommodations to allow for an efficient review of the Circuit Layout Files, while maintaining the security of the Secure Computer (e.g. arranging for some Circuit Layout Files to be opened in advance of the arrival of the Reviewer on a particular day). The Supplier may employ security measures on the Secure Computer such as physical measures to prevent or detect tampering with the Secure Computer, disabling of communication ports and software functionality, data encryption, access logging limitations on access privileges by the Reviewing Party, and specification and configuration of the operating system, so long as such measures do not impact the normal operation of the reasonable analysis tools to be used for inspecting the Process Definition files. The Reviewing Party shall not attempt to circumvent any security measures implemented by the Supplier, under any circumstances. In order to verify that its Process Definition files have not later been altered, the Supplier may benchmark the materials before and after they are provided, but shall not install any keystroke

or other monitoring software on the Secure Computer. Such benchmarking shall not allow Supplier to access, review, alter, or delete the Reviewing Party's working files/folders including any (1) working files generated by software analysis tools, (2) prior printout requests, (3) current printout requests, and/or (4) prospective printout requests. Moreover, such benchmarking shall not prevent the Reviewing Party from deleting any portion of its working files/folders.

viii. No copies shall be made of HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION, whether physical, electronic, or otherwise, except as allowed under this Protective Order. No outside electronic devices, including but not limited to laptop computers, mobile devices, USB flash drives, zip drives, or devices with camera functionalities shall be permitted in the same room as the Secure Computer.

ix. The Secure Computer shall be configured with a means for selecting Process Definition files for printing, as permitted herein. The Reviewing Party may select portions of the Process Definition files to be printed only when reasonably necessary to facilitate the Reviewing Party's preparation of filings with the Administrative Law Judge or Commission, expert reports, contentions, and hearing exhibits, and shall request the printing only of such portions as are believed to be relevant to the claims and defenses in the case and are reasonably necessary for such purposes. The Reviewing Party shall not request the printing of Process Definition files that have not been reviewed on the Secure Computer, or in order to review the Process Definition files elsewhere in the first instance, i.e., as an alternative to reviewing the Process Definition files electronically on the Secure

Computer. The Reviewing Party shall place a copy of all Process Definition file excerpts or screenshots to be printed in a folder on the Secure Computer. At the request of the Reviewing Party, the Supplier shall, within five (5) business days, provide one (1) hard copy printout, printed using a high-resolution color laser printer, of the specific lines, pages, screenshots, excerpts, or files of the Process Definition files that the Reviewing Party believes in good faith are necessary to understand a relevant product feature, not to exceed twenty-five (25) contiguous pages of any Process Recipe, thirty (30) contiguous pages of Circuit Layout, and not to exceed a maximum of ten (10) percent of the total pages of the Process Definition files for any given node variant. If necessary, the Reviewing Party may request that the Supplier print additional pages in excess of the above limits. The Supplier shall not unreasonably deny such requests. In the event of a dispute, the parties will meet and confer within two (2) business days of the objection being raised; and if they cannot resolve such dispute, the Reviewing Party will raise it with the Chief Administrative Law Judge.

- x. Hard copy printouts of HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION shall be provided on Bates numbered and watermarked paper clearly labeled HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION on each page and shall be maintained by the Reviewing Party's outside litigation counsel or PROCESS DEFINITION QUALIFIED PERSONS in a secured locked area. To the extent that hard copy printouts of Process Definition files are maintained by a Reviewing

Party's qualified expert or consultant, the qualified expert or consultant shall store the hard copy printouts in a secure locked container located in the qualified expert's or consultant's home office at all times when the hard copy printouts of Process Definition files are not in use. The Reviewing Party may also temporarily keep the printouts at: (1) the Commission for any proceedings(s) relating to the Process Definitions, for the dates associated with the proceeding(s) and during hours when the proceeding(s) are being conducted, but in no event overnight (except in the event the paper copies are kept at the Commission overnight because they were submitted/filed with the Commission pursuant to this paragraph); (2) the sites where any deposition(s) relating to the Process Definitions are taken, for the dates associated with the deposition(s) during hours when the deposition(s) are being conducted, but in no event overnight in a deposition room (during which time such Process Definitions shall be secured as otherwise required by this Protective Order); and (3) any reasonably secure intermediate location reasonably necessary to transport the printouts (e.g., a locked hotel room prior to a Commission proceeding or deposition, or a secure carrier). For avoidance of doubt, an access-restricted location within the facilities of Outside Counsel or a qualified expert or consultant, such as a conference room within an access restricted office while the printouts are being reviewed or used, or a locked drawer or cabinet when the printouts are not in use, shall constitute a secured locked area. Moreover, no more than thirty (30) contiguous pages of any Process Recipe, ten (10) contiguous pages of Circuit Layout, and not to exceed a maximum of ten (10) percent of the total pages of the Process Definition files for any given node variant,

in hard copy format, may be shipped via Federal Express, or other similar carrier, in any one single container. For the avoidance of doubt, any shipment of the Supplier's Process Definitions in paper format that exceeds the limitations above would be required to be shipped in multiple containers. The Reviewing Party shall exercise due care in limiting visual access to the printouts, maintaining the security of the printouts at these temporary locations, and transporting the printouts to and from these temporary locations. No hard copies of such HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION shall be converted into an electronic document, and may not be scanned using optical character recognition ("OCR") technology. However, as to hard copies of printouts:

1. The Reviewing Party is permitted to make up to five (5) additional hard copies for use as working copies by PROCESS DEFINITION QUALIFIED PERSONS.
2. The Reviewing Party is permitted to make up to five (5) additional hard copies for use at a deposition. One hard copy of the Process Definitions may be marked as an exhibit for the deposition, and then maintained by counsel for the party presenting the exhibit during the deposition in a secured locked area. If portions of the Process Definitions are marked as an exhibit for the deposition, the deposition transcript shall refer to the bates range (and line numbers, if applicable) of the portions of the Process Definitions used as the exhibit. The copy of the Process Definitions used as the exhibit shall not be attached as an exhibit to the deposition transcript, but shall instead be maintained by the

producing party under the terms set forth in this First Protective Order Amendment. All other copies shall be returned to the Supplier immediately after the deposition is concluded.

3. The Reviewing Party is permitted to make up to five (5) additional hard copies for the Chief Administrative Law Judge or Commission in connection with a submission, filing, hearing, or trial, and of only the specific pages directly relevant to and reasonably necessary for deciding the issue for which the portions of the Process Definitions are being filed or offered. To the extent portions of Process Definitions are quoted in such submission or filing, either (1) the entire document will be stamped and treated as HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION; or (2) those pages containing quoted Process Definitions will be separately stamped and treated as HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION.
4. To the extent permitted by the Administrative Law Judge and the Commission, the parties will seek permission to treat printouts of HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION as physical exhibits that will be submitted to the Commission in sealed and labeled envelopes. To the extent this is not permitted by the Chief Administrative Law Judge or the Commission, electronic copies of HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION may be made to be included in documents and filings which, pursuant to the Commission's rules, procedures and order(s), must

be submitted to the Chief Administrative Law Judge, filed or served electronically, provided that any such copies are marked and treated as HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION. In addition, electronic copies of: (i) excerpts from hard copy printouts of Process Definitions from the Secure Computer, (ii) summaries and/or descriptions of HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION created by the Reviewing Party, and (iii) testimony related to the HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION may be made to be included in: (a) documents and filings that may be submitted, filed or served electronically; or (b) deposition and/or hearing transcripts or videos prepared by a PROCESS DEFINITION QUALIFIED PERSON to a PROCESS DEFINITION QUALIFIED PERSON. The Reviewing Party shall use good faith efforts to minimize, in electronically created excerpts of Process Definitions, information that does not concern a relevant product feature or does not otherwise provide context with respect to a relevant product feature, provided however that the exercise of such good faith efforts in no way entails the creation of irregularly shaped electronic excerpts or electronic excerpts that are less than the width of the hardcopy page from which the excerpt was taken. The Reviewing Party shall use good faith efforts to consider, on a case by case basis, whether it would be advantageous to use a manually-copied excerpt of Process Definitions in lieu of an electronically created excerpt of Process Definitions, provided however that the Reviewing

Party's decision to use a manually-copied excerpt or an electronically created copy rests in the Reviewing Party's good faith discretion and shall not serve as a basis for the Supplier to allege a violation of this Order. To the extent that the Reviewing Party contends that portions of HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION reasonably necessary to prove a technical issue do not fall into one of the above categories, the Supplier will meet and confer with the Reviewing Party in good faith and will not unreasonably withhold consent to permit electronic copies of those portions. In addition, any such copies shall be marked as HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION. Only the necessary number of electronic copies to effectuate such filing or service may be stored on any Reviewing Party server or hard drive at any given time. After any such electronic filing or service, the Reviewing Party may maintain only the necessary number of copies of such filings, but shall delete all other electronic copies of Process Definitions.

5. The parties will meet and confer in good faith to discuss whether the Secure Computer can be made available at a deposition and/or the evidentiary hearing. The Reviewing Party shall make such request at the time of the notice for deposition. In addition, the Reviewing Party shall renew the request two (2) business days before the deposition or hearing that it would like the Secure Computer made available. If the Secure Computer is made available, the Secure Computer will be brought into the deposition room or court room at the request

of the Reviewing Party, but only for such periods of time that counsel for the Supplier is also present, and will be kept in the review room otherwise.

xi. Nothing in this Protective Order shall be construed to limit how a Supplier may maintain material designated as HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION.

xii. Outside Counsel for the Reviewing Party with custody of HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION shall maintain a log containing the following information: (1) the identity of each PROCESS DEFINITION QUALIFIED PERSON who has accessed the HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION, including any copies thereof; (2) the Bates range of printouts; (3) all date(s) of such access; and (4) the present custodian of the HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION, including copies thereof, access by each PROCESS DEFINITION QUALIFIED PERSON. Outside Counsel for the Reviewing Party will produce the log to the Supplier within twenty (20) days of the final determination of the Investigation or at the request of Outside Counsel.

K. None of the provisions of paragraph 18, including this sub-paragraph, shall be interpreted to expand or limit discovery on expert materials which would otherwise be discoverable or not discoverable under the provisions of the Protective Order issued in this Investigation, Order No. 1, any discovery stipulations between the parties, or any other applicable rules related to expert discovery before the International Trade Commission.

19. **Inadvertent Production of Privileged Information.** Inadvertent production of Privileged Information (defined as “information subject to a claim of attorney-client privilege, attorney work product protection, common interest privilege, or any other applicable privilege or protection under law or regulation”) shall be governed by 19 C.F.R. § 210.27(e)(2). The production or disclosure of any Privileged Information, or the failure to object to the use of such Privileged Information, whether inadvertent or otherwise, and regardless of the circumstances, is not a waiver of the privilege or protection from discovery in this case or in any other federal or state proceeding pursuant to Federal Rule of Evidence 502(d). Such production, disclosure, or failure to object to its use shall not waive, impair, or forfeit any claim of privilege or protection shielding the Privileged Information and its subject matter from discovery. Notwithstanding this, nothing herein shall prevent the Reviewing Private Party from challenging the propriety of the claim of attorney-client privilege or work product immunity or other applicable privilege or immunity designation by submitting a written challenge to the Chief Administrative Law Judge in accordance with the Ground Rules and/or Commission Rules

If a Reviewing Private Party discloses to a person or an entity other than the producing Private Party any Privileged Information that was inadvertently or unintentionally produced or disclosed by another party, such disclosure shall not be deemed a waiver of the attorney-client privilege, common-interest privilege, work product immunity, or any other applicable privilege or immunity, either as to the specific Privileged Information disclosed or produced, or as to any other Privileged Information relating thereto or on the same or related subject matter (and none of the Private Parties will assert such a waiver). In such circumstances, after the producing Private Party provides written notice (or notice on the record if the producing Private Party becomes aware of the inadvertent or unintentional disclosure at a deposition or hearing) designating such Privileged

Information as within an applicable privilege or immunity, the Reviewing Private Party shall cooperate in good faith to protect the applicable privilege or immunity with respect to the disclosed Privileged Information, including retrieval or destruction of all copies, to the extent possible.

EXHIBIT A

**ACKNOWLEDGMENT AND AGREEMENT TO BE BOUND BY THE FIRST
PROTECTIVE ORDER AMENDMENT**

I, _____ [print or type full name], state: My
business address is _____;

My present employers are _____;

My present occupations or job descriptions are _____;

I have read in its entirety the First Protective Order Amendment Regarding the Production and Treatment of Confidential Process Definitions (“First Protective Order Amendment”) entered in this litigation, and I understand and agree to abide by its terms. I agree to keep confidential all **HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION** provided to me related to *Certain Semiconductor Devices, Products Containing Same, and Components Thereof*, Investigation No. 337-TA-1500, in accordance with the restrictions in the First Protective Order Amendment, and to be subject to the authority of the United States International Trade Commission and/or any appropriate state or federal court in the event of any violation or dispute related to this First Protective Order Amendment.

I state under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on _____.

[Printed Name]

[Signature]

CERTIFICATE OF SERVICE

It is hereby certified that copies of the foregoing **JOINT MOTION TO AMEND THE PROTECTIVE ORDER** were served on June 23, 2026 as follows:

The Honorable Lisa R. Barton Secretary to the Commission U.S. International Trade Commission 500 E Street, SW, Room 112 Washington, DC 20436	BY EDIS
The Honorable Clark S. Cheney Chief Administrative Law Judge U.S. International Trade Commission 500 E Street, SW, Room 317 Washington, DC 20436	By Email and Box: Cheney1500@usitc.gov
Stephen R. Smith COOLEY LLP 1299 Pennsylvania Ave., N.W. Suite 700 Washington, D.C. 20004 <i>Counsel for Respondents Tower Semiconductor Ltd., Tower Partners Semiconductor, Ltd., Tower Semiconductor Italy S.r.l., Tower US Holdings, Inc., Tower Semiconductor San Antonio, Inc., Tower Semiconductor NPB Holdings, Inc., Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC</i>	By Email: TowerITC@cooley.com

/s/ Erika J. Weinstein

Erika J. Weinstein

CLEARY GOTTlieb STEEN & HAMILTON LLP